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U.S. Department of State Diplomacy in Action

Trinidad and Tobago

Country Reports on Human Rights Practices
Bureau of Democracy, Human Rights, and Labor
2000
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Trinidad and Tobago, a member of the Commonwealth of Nations, is a parliamentary democracy in which there have been free and fair general elections since independence from the United Kingdom in 1962. A bicameral parliament and a prime minister govern the country. Parliament elects a president, whose office is largely ceremonial. In elections on December 11, voters returned the ruling United National Congress (UNC) party led by Prime Minister Basdeo Panday to power with 19 seats in the 36-member Parliament. A 12-member elected House of Assembly handles local matters on the island of Tobago. The judiciary is independent but inefficient.

The Ministry of National Security controls the police service and the defense force, which are responsive to civilian authority. An independent body, the Police Service Commission, makes all personnel decisions in the police service, and the Ministry has little direct influence over changes in senior positions. Police and prison guards committed some abuses.

Oil and natural gas production and related downstream petrochemical industries form the basis of the market-based economy. The service sector is the largest employer, although continued industrialization has created many jobs in the construction industry. Agriculture, while contributing only 2 percent to gross domestic product, remains an important employer, both at the subsistence and commercial level. Although per capita income is approximately \$5,700 annually, 12.5 percent unemployment contributes to a skewed income distribution, which has not improved despite economic growth of 6.7 percent. Government efforts to address this problem by further diversification into manufacturing and tourism have been only partially successful.

The Government generally respected the human rights of its citizens, and the law and judiciary provide effective means of dealing with individual instances of abuse. Nonetheless, police and guard abuse of prisoners, poor prison conditions, long delays in trials, and extensive violence against women remain problems.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no reports of political or other extrajudicial killings.

In the December 31, 1999, murder of politician Hanraj Sumairsingh, which some thought might have had a political motivation, the police arrested and charged a member of Jamat al Muslimeen, a radical group. However, bribery and corruption were believed to be motives behind the killing.

b. Disappearance

There were no reports of politically motivated disappearances.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Constitution prohibits such practices, and there were no reports that officials employed them; however, there were credible reports of police and prison personnel abusing prisoners in incidents that involved beating, pushing, and verbal insults.

A 1999 ruling permits corporal punishment for certain crimes, including aggravated assault, rape, deliberate shooting, and robbery with violence. During the year, the courts sentenced 5 persons to corporal punishment (ranging from 5 to 10 birch strokes) in addition to prison terms. The law also was changed to increase the corporal punishment for rape from 15 strokes to 20.

Prison conditions at the women's prison and two of the three men's prisons meet minimum international standards. However, conditions are worse in the Port of Spain prison, which dates from the 1830's. It was designed for 250 inmates but houses about 1,000. Diseases such as chicken pox, tuberculosis, AIDS, and other viruses spread easily, and prisoners generally must purchase their own medication. Overcrowding is a problem for the entire prison system, which housed 4,700 inmates in prisons built to accommodate 1,800. A new maximum security prison opened in 1998 houses about 850 prisoners, but it is not yet fully functional. With an eventual capacity of 2,100, this prison is expected to help alleviate the problem.

The Government permits prison visits by human rights monitors.

d. Arbitrary Arrest, Detention, or Exile

The Constitution prohibits arbitrary arrest or detention, and the Government generally observes this prohibition.

A police officer may arrest a person either based on a warrant issued or authorized by a magistrate or without a warrant when the officer witnesses commission of the alleged offense. For less serious offenses, the authorities typically bring the accused before a magistrate within 24 hours; for indictable offenses, the accused must appear within 48 hours. At that time, the magistrate reads the charge and determines whether bail is appropriate. Magistrates may deny bail to violent or repeat offenders. If for some reason the accused does not come before the magistrate, the case comes up on the magistrate's docket every 8 to 10 days until a hearing date is set. The courts notify persons of their right to an attorney and allow them access to an attorney once they are in custody and prior to any interrogation. However, the authorities do not always comply with these standards. Allegations of corruption among justices of the peace also raised concerns about compliance; the Government pledged to dismiss and prosecute any justice found to have violated these standards (see Section 1.e.).

The Minister of National Security may authorize preventive detention in order to prevent actions prejudicial to public safety, public order, or national defense, and the Minister must state the grounds for the detention. A person detained under this provision has access to counsel and may have the detention reviewed by a three-member tribunal established by the Chief Justice and chaired by an attorney. The Minister must provide the tribunal with the grounds for the detention within 7 days of the detainee's request for review, which shall be held "as soon as reasonably practicable" following receipt of the grounds. There have been no reports that the authorities abused this procedure.

The Constitution prohibits forced exile, and it is not used.

e. Denial of Fair Public Trial

The Constitution provides for an independent judiciary, and the Government respects this provision in practice. The judiciary provides citizens with a fair judicial process. After the Chief Justice warned in 1999 that the executive branch was encroaching upon judicial independence, the Government appointed two independent commissions to review the issue. A Commonwealth commission concluded that the judiciary was not threatened by the Attorney General's involvement in judicial administration; however, a law association group recommended that executive requests should be handled by the Prime Minister, not the Attorney General.

The court system consists of a court of appeal, a high court, and a magistrate's court. A criminal offense first is sent to a magistrate's court for a preliminary inquiry to determine if it can be heard before a magistrate without a jury. If the magistrate determines that the offense is a serious one, it is referred to the High Court, where it is heard before a judge and jury. All civil matters are heard by the High Court. Appeals can be filed with the local court of appeal and ultimately to the Privy Council in London. There is considerable support for abolishing appeals to the Privy Council and establishing a Caribbean Court of Justice, located in Trinidad and Tobago, to serve as the final court of appeal.

An October decision of the Privy Council ruled that all death row prisoners throughout the Caribbean have a right to be heard before its Mercy Committee, which can stay death sentences. The Council decided that prisoners should be given access to all material put before the Mercy Committee. In addition procedures followed by the Mercy Committee now can be subject to judicial review.

The Constitution provides for the right to a fair trial, and an independent judiciary vigorously enforces this right. All criminal defendants have the right to an attorney. In practice the courts sometimes appoint attorneys for those persons charged with indictable offenses (serious crimes) if they cannot retain one on their own behalf. The law requires a person accused of murder to have an attorney. An indigent person may refuse to accept an assigned attorney for cause and obtain a replacement.

Despite serious efforts to improve the judiciary, severe inefficiency remains in many areas. Several criminal cases were dismissed due to judicial or police inefficiency. Despite significant progress, lengthy trial delays remain a serious problem.

The Government continued to take steps against corruption in the criminal justice system. Over a 2-year period, the authorities charged at least 80 persons with various offenses after a presidential commission's investigation found collusion among justices of the peace, bailiffs, and police officers in the granting and fixing of bail. The Government revoked the licenses of 25 justices of the peace. However, at year's end, the charges brought against these individuals were still before the court. Only one of those indicted as a result of the commission's inquiry had come to trial. In that case, a court convicted one of the justices of the peace and sentenced him to 4 years' imprisonment.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such practices, government authorities generally respect these prohibitions, and violations are subject to effective legal sanction.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press, and the Government respects this right in practice. An independent press and a functioning democratic political system combine to ensure freedom of speech and of the press.

The three major daily newspapers freely and often criticize the Government in editorials. Widely read weekly tabloids tend to be extremely critical of the Government. All newspapers are privately owned. The two local television newscasts, one of which appears on a state-owned station, are sometimes critical of the Government but generally do not editorialize.

Over the past several years, the Media Association of Trinidad and Tobago and the Publishers' Association have expressed concern about media treatment and access to the Government. For its part, the Government sometimes charges unfair treatment by the media, which the press views as unwarranted criticism. When the Prime Minister labeled Ken Gordon, head of a major media corporation, a "pseudo-racist" for editorials about the rise of the ruling UNC party, Gordon filed suit for libel. In November a court found the Prime Minister guilty of libel and ordered him to pay damages to Gordon.

A Board of Film Censors is authorized to ban films that it considers to be against public order and decency or contrary to the public interest. This includes films that it believes may be controversial in matters of religion or race, or that contain seditious propaganda. In practice films rarely are banned.

The Government respects academic freedom.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly, and the Government respects this right in practice. The police routinely grant the required advance permits for street marches, demonstrations, or other outdoor public meetings. In 1998 the Government amended the Summary Offences Act to put greater controls on holding public rallies. The amendments require that permits for public meetings and rallies be applied for 48 hours in advance instead of 24 hours, and make it an offense to hold a public meeting without a permit under the guise of conducting an exempted religious, educational, recreational, or sports function. In practice the amendments have not restricted unduly public meetings, demonstrations, or exempted events. One planned political youth demonstration was postponed when the police denied a permit due to concerns about size and safety.

The Constitution provides for freedom of association, and the Government respects this right in practice. Registration or other governmental permission to form private associations is not required.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respects this right in practice.

In October Parliament passed an Equal Opportunities Bill that prohibits acts that offend or insult another person or group on the grounds of race, origin, or religion, or which incite racial or religious hatred. In November Parliament passed a separate bill that in part removed certain legal provisions interfering with the religious practices of the Spiritual Shouter Baptist and Orisa faiths.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for these rights, and the Government respects them in practice.

There is no provision for persons to claim or be classified as refugees or asylum seekers; the Ministry of National Security's Immigration Division handles any such requests on a case-by-case basis. The issue of the provision of first asylum did not arise. There were no reports of the forced return of persons to a country where they feared persecution.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution provides citizens with the right to change their government peacefully, and citizens exercise this right in practice through periodic, free, and fair elections held on the basis of universal suffrage. Parliamentary elections are held at intervals not to exceed 5 years. Elections for the 12-member Tobago House of Assembly are held every 4 years. The Constitution extends the right to vote to citizens as well as to legal residents at least 18 years of age who are citizens of other Commonwealth countries.

In the 1995 general elections, the former opposition UNC and the ruling People's National Movement (PNM) each won 17 seats in the 36-member Parliament. The National Alliance for Reconstruction (NAR) won two seats and joined with the UNC to form a new government. Basdeo Panday became the country's first Prime Minister of East Indian descent. The PNM is primarily but not exclusively Afro-Trinidadian; the UNC is primarily but not exclusively Indo-Trinidadian. In general elections in December, voters returned Prime Minister Panday and his UNC party to power with a 19-seat majority. The PNM won 16 seats and the NAR 1 seat. Election observers noted that the elections were well-organized, peaceful, free, and fair. Several recounts were requested and proceeded without incident. By year's end, opposition challenges to election results in two districts had not yet been decided.

There are no specific laws that restrict the participation of women or minorities in government or the political parties. Women hold many positions in the Government and political party leadership but are still underrepresented. Four of 36 elected members of the House of Representatives and 9 of 31 appointed Senators are women, with 2 women serving as ministers. Prime Minister Panday appointed the first woman to serve as Attorney General; she since has moved to the position of Minister of Education. Prime Minister Panday also appointed the first female acting Prime Minister.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of human rights groups operate without government restriction, investigating and publishing their findings on human rights cases. While government officials are cooperative, the Government has bitterly attacked Amnesty International's criticism of prison conditions and due process. An independent Ombudsman receives complaints relating to governmental administrative issues and investigates complaints of human rights abuse. The Ombudsman can make recommendations but does not have authority to force government offices to take action.

The Government sought to curtail appeals by death row inmates to the Inter-American Commission on Human Rights (IACHR) and the U.N. Human Rights Committee. In 1999 it withdrew from the IACHR following its required 1-year notice. The Government also withdrew from the Optional Protocol to the International Covenant on Civil and Political Rights, but reaccessed with the reservation that the U.N. Committee would not have jurisdiction over death penalty cases.

The Government's moves were prompted by a Privy Council ruling that failure to execute a condemned prisoner within 5 years of sentence constitutes cruel and unusual punishment in violation of the Constitution. To meet this 5-year deadline, the Government established time limits for appeals to courts and human rights bodies. Local appeals are now disposed of within an average of 16 months compared with the previous average of 7 years.

The Government asked the IACHR and the U.N. Committee each to agree to dispose of petitions within 8 months. According to the Government, both bodies responded that they could not provide such assurances. The Government stated that the conflict between a binding Privy Council ruling and its obligations to the human rights organs had to be resolved in favor of the Constitution and the Privy Council. The Government indicated that it would execute condemned prisoners who have exhausted all their appeals and have unresolved petitions pending more than 8 months before one of the human rights bodies.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language, or Social Status

The Government respects in practice the constitutional provisions for fundamental human rights and freedoms for all without discrimination based on race, origin, color, religion, or sex. In October Parliament passed an Equal Opportunities Bill that makes discrimination illegal on the basis of race, ethnicity, sex, religion, marital status or disability. It also establishes a commission to investigate cases of alleged discrimination and a tribunal to judge complaints.

Women

Physical abuse of women continued to be an extensive problem. There has been increased media coverage of domestic abuse cases and signs of a shift in public opinion, which held that such cases were a private matter. The Government has taken action to improve aid to victims. Murder, rape, and other crimes against women are reported frequently; 30 percent of all female homicide victims were believed to have been killed by their husbands or lovers. Rape, spousal abuse, and spousal rape are criminal offenses. The 1991 Domestic Violence Act was intended to facilitate court-issued restraining orders to protect victims and extended protection to common-law relationships, a frequent form of marital union. However, some observers say that the number of restraining orders issued has not increased at the rate expected since the enactment of the law. The establishment of a community police division improved police responsiveness to reports of domestic abuse, but some police officers are reported to be unsympathetic or reluctant to pursue such cases, resulting in underreporting of crimes of violence against women. There were more than 4,000 complaints of spousal abuse during the year; police handled an average of 9 cases a day that led to reports by victims, with the actual incidence of such abuse considered to be much higher. Two government ministries, operating independently, direct the nongovernmental organizations (NGO's) that run most of the country's social programs addressing domestic violence, including five shelters for battered women. A rape crisis center offers counseling for rape victims and perpetrators on a voluntary basis. A government-sponsored hot line receives about 300 calls per month.

In 1999 a new Domestic Violence Act came into effect. That law strengthened provisions of the 1991 law and allows easier access for police in instances of domestic violence. Parliament approved amendments to the Sexual Offences Act that broaden the definition of sexual offenses, increase the punishment for such crimes, and require the police to keep a register of sexual offenders.

Many women hold positions in business, the professions, and government, but men tend to hold the most senior positions. There is no law or regulation requiring equal pay for equal work; during the year, a bill containing such provisions was introduced into Parliament, but no action was taken on it.

The Division of Gender Affairs in the Ministry of Culture and Gender Affairs is charged with protecting women's rights in all aspects of government and legislation. Several active women's rights groups also exist.

Children

The Government's ability to protect children's welfare is limited by a lack of funds and expanding social needs. Education is free and compulsory through primary school. Some parts of the public school system seriously fail to meet the needs of the school age population due to overcrowding, substandard physical facilities, and occasional classroom violence by gangs. There is no societal pattern of abuse directed at children. The Domestic Violence Act provides protection for children abused at home. Abused children are usually placed with relatives if they are removed from the home. If there is no relative who can take them, there are several government institutions and NGO's that accept children for placement.

People with Disabilities

There is no legislation that specifically enumerates or protects the rights of disabled persons or mandates the provision of access to buildings or services, although NGO's lobbied Parliament to pass such legislation. The lack of access to transportation, buildings, and sidewalks is a major obstacle for the disabled. The Government provides some public assistance and partial funding to a variety of NGO's which, in turn, provide direct services to disabled members or clients.

Indigenous People

Members of a very small group in the population identify themselves as descendants of the original Amerindian population of the country. They maintain social ties with each other and other aboriginal groups and are not subject to discrimination.

National/Racial/Ethnic Minorities

Various ethnic and religious groups live together peacefully, generally respecting one another's beliefs and practices. However, at times racial tensions appear between Afro-Trinidadians and Indo-Trinidadians. Each group comprises about 40 percent of the population. The private sector is dominated by Indo-Trinidadians and people of European, Middle Eastern, or Asian descent. Indo-Trinidadians also predominate in agriculture. Afro-Trinidadians tend to find employment in disproportionate numbers in the civil service, police, and military. Some Indo-Trinidadians assert that they are excluded from equal representation in the civil service due to racial discrimination. Since Indo-Trinidadians constitute the majority in rural areas and Afro-Trinidadians are in the majority in urban areas, competition between town and country for public goods and services often takes on racial overtones.

In 1996 there were reports that several popular recreational clubs refused entry to Afro-Trinidadians and dark-skinned Indo-Trinidadians. The reports led to criticism of racism by the local press, and the Government pledged to implement a law banning racial discrimination in entry policies for private clubs. However, the Government has not yet taken such action.

Section 6 Worker Rights

a. The Right of Association

The 1972 Industrial Relations Act provides that all workers, including those in state-owned enterprises, may form or join unions of their own choosing without prior authorization. Union membership has declined in recent years, with an estimated 25 to 30 percent of the work force organized in 19 active unions. Most unions are independent of the Government or political party control, although the Sugar Workers' Union historically was allied with the UNC. The Prime Minister formerly was president of the Sugar Workers' Union.

The law prohibits antiunion activities before a union is registered legally, and the Ministry of Labor enforces this provision when it receives a complaint. A union also may bring a request for enforcement to the Industrial Court. All employees except those in "essential services," which include the police and many other government employees, have the right to strike.

The Labor Relations Act prohibits retribution against strikers and provides for grievance procedures if needed. A special section of the Industrial Court handles mandatory arbitration cases. Arbitration agreements are enforceable and can be appealed only to the Industrial Court. Most observers consider this court to be impartial; it consists of government, business, and labor representatives.

Unions freely join federations and affiliate with international bodies. There are no restrictions on international travel or contacts.

b. The Right to Organize and Bargain Collectively

The Industrial Relations Act establishes the right of workers to collective bargaining. The Ministry of Labor's conciliation service maintains statistical information regarding the number of workers covered by collective bargaining agreements and the number of antiunion complaints filed.

The Industrial Court may order employers who are found guilty of antiunion activities to reinstate workers and pay compensation, or it can impose other penalties including imprisonment. When necessary the conciliation service also determines which unions should have senior status.

There are several export processing zones (EPZ's). The same labor laws apply in the EPZ's as in the rest of the country.

c. Prohibition of Forced or Compulsory Labor

The law does not prohibit specifically forced or compulsory labor, but there were no reports that it was practiced. There were also no reports of forced or bonded labor by children.

d. Status of Child Labor Practices and Minimum Age for Employment

The minimum legal age for workers is 12 years. Education is compulsory through primary school. Children from 12 to 14 years of age may work only in family businesses. Children under the age of 18 legally may work only during daylight hours, with the exception of 16- to 18-year-olds, who may work at night in sugar factories. The probation service in the Ministry of Social Development and Family Services is responsible for enforcing child labor provisions, but enforcement is lax. There is no organized exploitation of child labor, but children are seen begging or working as street vendors. The Government does not prohibit specifically forced and bonded labor by children, but such practices are not known to occur (see Section 6.c.).

e. Acceptable Conditions of Work

The 1998 Minimum Wages Act established a minimum wage of about \$1.10 (TT\$7.00) per hour. The minimum wage is not sufficient to support a worker and family, but most workers earn more than the minimum. The Ministry of Labor enforces the minimum wage regulations.

The Minimum Wages Act also established a 40-hour workweek, time- and-one-half pay for the first 4 hours of overtime on a workday, double pay for the next 4 hours, and triple pay thereafter. For Sundays, holidays, and off days, the act also provides for double pay for the first 8 hours and triple pay thereafter. Daily rest periods and paid annual leave form part of most employment agreements.

The Factories and Ordinance Bill of 1948 sets requirements for health and safety standards in certain industries and provides for inspections to monitor and enforce compliance. The Industrial Relations Act protects workers who file complaints with the Ministry of Labor regarding illegal or hazardous working conditions. If it is determined upon inspection that hazardous conditions exist in the workplace, the worker is absolved for refusing to comply with an order that would have placed him or her in danger.

f. Trafficking in Persons

While there are no laws that specifically address trafficking in persons, the illegality of such acts is covered broadly in a variety of legislation dealing with kidnaping, labor conditions, pimping and prostitution, slavery, and indentured servitude. There were no reports of persons being trafficked to, from, within, or through the country.

[End.]

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